

11. 9:00 AM CASE NUMBER: C25-00570
CASE NAME: CYNTHIA DUNHAM VS. AUSTREBERTO PINEDA GOMEZ
HEARING IN RE: FOR PRELIMINARY INJUNCTION
FILED BY:

TENTATIVE RULING:

Parties and counsel to appear, in person, for discussion as to the present situation and what accommodations can be made by agreement or Court order.

12. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EAST BAY MUNICIPAL UTILITY DISTRICT VS. MATT KAUFFMAN
*HEARING ON MOTION IN RE: DISMISS CCP 430.10 AND HOLD PLAINTIFF IN CIVIL CONTEMPT
FILED BY:

TENTATIVE RULING:

The Court continues this motion a week, to June 18, 2026 at 9:00 a.m. The Court has not completed its analysis.

13. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: PAULA S. GROHS
FILED BY: ZUCCA, MARK

TENTATIVE RULING:

Moving counsel to appear in person for an in camera hearing as to grounds for withdrawal. The client may also appear if desired.

14. 9:00 AM CASE NUMBER: C25-02753
CASE NAME: LOYED COBB VS. LUCKY STORES (SAVE MART) LLC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL
FILED BY:

TENTATIVE RULING:

Moving counsel to appear in person for an in camera hearing as to grounds for withdrawal. The client may also appear if desired.

15. 9:00 AM CASE NUMBER: C25-03224
CASE NAME: SHOPS AT TODOS SANTOS, LLC VS. EDWIN TIU
HEARING IN RE: MOTION TO SET ASIDE DEFAULT
FILED BY:

TENTATIVE RULING:

This is a rent collection action for restaurant premises. Defendant Trang Tran is in default but moves pro per to vacate the default. The motion is unopposed, and it is **granted**. Tran may file and serve his

answer by June 29. The Court does not know if defendant tried to contact plaintiff's counsel to ask for a stipulation, but this should have been handled by stipulation.

16. 9:00 AM CASE NUMBER: C25-03224
CASE NAME: SHOPS AT TODOS SANTOS, LLC VS. EDWIN TIU
HEARING IN RE: MOTION TO SET ASIDE DEFAULT
FILED BY:

TENTATIVE RULING:

This is a rent collection action for restaurant premises. Defendant Thomas Phu is in default, but moves pro per to vacate the default. The motion is unopposed, and it is **granted**. Tran may file and serve his answer by June 29. The Court does not know if defendant tried to contact plaintiff's counsel to ask for a stipulation, but this should have been handled by stipulation.

17. 9:00 AM CASE NUMBER: C26-00382
CASE NAME: GIOVANNI BIASIN VS. NISSAN NORTH AMERICA INC., A CORPORATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NISSAN NORTH AMERICA INC., A CORPORATION

TENTATIVE RULING:

This demurrer was **withdrawn** in light of plaintiff's voluntary dismissal of the challenged cause of action.

18. 9:00 AM CASE NUMBER: MSC19-01228
CASE NAME: KENZIE CONSULTING VS CUNNINGHAM
***HEARING ON MOTION IN RE: SET ASIDE JUDGMENT ENTERED AGAINST DEFENDANTS**

FILED BY: CUNNINGHAM, HART PEARSON

TENTATIVE RULING:

Judgment for plaintiffs was entered in 2023 after defendants' answers and cross-complaint were stricken for repeated failures to appear and disobedience of an order to mediate. Defendants now move to vacate the dismissal and judgment. The motion is **denied**.

Background and Course of Litigation

Plaintiff Tierney and his related consulting business filed this suit in June 2019, to collect amounts due for various professional and business services provided to Cunningham and his affiliated businesses. All defendants were served in July 2019, through personal service on Cunningham at his residence in Haiku, Hawaii.

In November 2019, the Court denied defendants' motion to dismiss for lack of personal jurisdiction and forum non conveniens. Thereafter defendants answered the complaint, and Cunningham personally cross-complained against plaintiffs for breach of a confidentiality agreement and conversion of business opportunities. He amended his cross-complaint further in November 2020,